2025 S C M R 1698

[Supreme Court of Pakistan]

Present: Sardar Tariq Masood and Mazhar Alam Khan Miankhel, JJ

MUHAMMAD YAQOOB (deceased) through L.Rs and others ---Petitioners

Versus

SAEEDA BIBI (deceased) through L.Rs and others ---Respondents

Civil Petition No. 1841 of 2025, decided on 2nd June, 2025.

(Against the judgment dated 28.02.2025, passed by the Lahore High Court, Lahore in Civil Revision No. 65590 of 2017).

Muslim Personal Law (Shariat) Application Act (V of 1962)---

----Ss. 3 & 5---Islamic law---Inheritance---Share in the legacy of deceased who left behind a widow (defendant No.1) and a daughter (plaintiff)---Property received by widow from inheritance of her deceased husband as limited owner---Limited owner status, termination of---Effect---After termination of status as limited owner the property occupied by Muslim female would be considered as a property of last male owner and same would revert back to his legal heirs and any sale made by her would be effective only to the extent of her own share---Facts in brevity were that the respondent No.1/plaintiff, daughter of the deceased filed a suit for declaration seeking her legal share in her deceased father's property---The defendant Nos. 2 to 9, (legal heirs of deceased's brother)disputed her claim alleging she was not his daughter and that deceased died issueless---However, defendant No.4 (stepbrother of respondent No.1/plaintiff) supported her claim through his written statement and oral evidence, confirming her status as deceased's daughter and he also appeared as PW-3 and his testimony remained un-shattered---The Trial Court, appellate court and High Court concurrently accepted respondent No.1's (plaintiff/daughter) claim---The petitioners, legal heirs of defendant No.10, who had purchased the property from widow of deceased (mother of plaintiff/respondent No.1) challenged the concurrent findings through civil revision, which was dismissed---Validity---Held: Defendant No. 10 (predecessor of the petitioners) purchased the share of widow of deceased/mother of plaintiff (the property inherited by her as widow of deceased)---This was the property of mother of respondent No.1/plaintiff's which was received by her from the inheritance of her deceased husband (father of respondent No.1) as limited owner and her status as limited owner was terminated under section 3 of the Muslim Personal Law (Shariat) Application Act, 1962---After termination of her status as limited owner the property occupied by her was considered as the property of last male owner and in the present case the last male owner was her last husband (father of respondent No.1/plaintiff) and according to the Act of 1962 the property had to be reverted back to his legal heirs---The record established the fact that the plaintiff as daughter of deceased, defendant No.1 as widow and remaining brother of the deceased (as deceased had no male issue) were entitled to inherit the legacy of the deceased predecessor of respondent No.1/plaintiff and this very status of the parties as declared by three courts below had attained finality---The predecessor of

the petitioner, defendant No.10, legally stepped into the shoes of defendant No.1/widow of deceased as he purchased the property from her and could ask only for the share which was received by her after promulgation of the Act of 1962 and the rest had to go to the other legal heirs of the deceased predecessor---Hence, the sale made by defendant No. 1 (mother of plaintiff / respondent No. 1 and widow of deceased predecessor) was only effective to the extent of her own share and that it was invalid, void and ineffective to the extent of rights of plaintiff (respondent No.1) and brother of the deceased---Since the actual defendants (respondent Nos. 3-9) accepted the decrees in favour of plaintiff (respondent No.1) the status of defendant No.1 (predecessor of the petitioners) was simply that of a purchaser who legally could not challenge / question the legal and sharia status of respondent No.1/plaintiff or the other respondents---The petitioners for that matter had no locus standi and cause of action to challenge the same---Present petition, petitioners' appeal before the District Court and civil revision before the High Court were not maintainable---Concurrent findings of facts recorded by three courts could not be questions in absence of any misreading or non-reading of material evidence or any other material irregularity or illegality---Present petition being meritless was dismissed and leave was refused, in circumstances.

Sheikh Sakhawat Ali, Advocate Supreme Court (via video link from Lahore) and Syed Rifaqat Hussain Shah, Advocate-on-Record for Petitioners.

Nemo for Respondents.

Date of hearing: 2nd June, 2025.

ORDER

MAZHAR ALAM KHAN MIANKHEL, J.---The petitioners being legal heirs of Defendant No.10 have impugned the judgment dated 28.02.2025 of the Lahore High Court, Lahore (the High Court), whereby the civil revision of the petitioners against the concurrent findings of decretal of the suit of Mst. Saeeda Bibi (Respondent No. 1) was dismissed.

2. We have heard the learned counsel for the petitioners and have also gone through the available record.

3. The record of the case would reveal that Respondent No. 1 (now deceased, through her legal heirs) being daughter of Siraj Din had filed a suit for declaration claiming therein her legal/ sharai share from the legacy of her father. The inheritance mutation of Siraj Din bearing No.1896 dated 17.06.1947 (Exh.P-5) available on the file itself would show that attempts were made to grab the property of Siraj Din even by Haji (his brother, father of Defendants No.2-9 and 2nd husband of Defendant No.1 (now deceased) and ultimately it was attested in the name of his widow Mst. Bhagan Bibi (the deceased Defendant No.1). The Defendants No.1-9 except Defendant No. 4 (the defendants) contested the suit by filing their written statement whereas Defendant No.4, who filed his separate written statement. The Defendants denied the stance of Respondent No.1 by alleging that Siraj Din (the father of Respondent No.1) died issueless and as such Respondent No.1 was not his daughter and not entitled to inherit from the legacy of Siraj Din. The Defendant No.4 (who is the brother of the Defendants) through his

written statement not only admitted that the Respondent No.1 was the daughter of Siraj Din, his real uncle, and has also admitted that she was the step sister of the Defendants and daughter of Mst. Bhagan Bibi, the Defendant No.1 and this very written statement fully supports the stance of Respondent No.1 and thereby the Respondent No.4 depicted and portrayed the actual story of the true facts and for no apparent benefit through such conceding statement, despite the fact that he had the same legal and sharai status as the other Defendants had. He also appeared as PW-3 and reiterated his stance by facing the test of cross-examination. Despite long and searching cross-examination his stance was not shattered. The Defendants also failed to put forth any specific stance qua the status of Respondent No.l. Mere denial of her status by them would not absolve them from their responsibility and the stance of the Respondent No.1 cannot be falsified by simple denial of the Defendants. In support of their specific stance, there should have been a strong and worth reliance evidence. The evidence so led by them is not only oral one but also short of such requirements and is not sufficient/enough to rebut the documentary evidence led by the Respondent No. 1.

4. The legal and sharai status of the plaintiff (Respondent No.1) and the Defendants (the Respondents Nos. 2-9) is established on the record and all the three Courts have concurrently accepted the claim of Respondent No.l. It is important to mention here that the Respondents Nos. 2-9, who are the main contestants of the case, have not challenged the decree of the trial Court in favour of Respondent No.1 by way of an appeal or civil revision. This alone further strengthens the case of Respondent No.l. After dismissal of appeal and then civil revision, the decree of the trial Court merged into the decree of the High Court. It was the Defendant No.10 and then his legal heirs, who have challenged the decree of the trial Court by way of an appeal before the District Judge and then civil revision before the High Court but were unable to get any relief. Now they are before this Court through the instant civil petition.

5. The Defendant No.10 (the predecessor of the petitioners) vide Mutation No. 3961 dated 09.07.2009 (Exh.P-6) purchased the share of Mst. Bhagan Bibi (the property inherited by her as widow of Siraj Din). This was the property of Mst. Bhagan Bibi received by her from the inheritance of her deceased husband namely, Siraj Din as limited owner. Her status as limited owner was terminated under Section 3 of the West Pakistan Muslim Personal Law (Shariat) Application Act, 1962 (the Act of 1962).

After termination of her status as limited owner, the property occupied by her would be considered as the property of last male owner and in this case last male owner was her late husband Siraj Din and according to the Act of 1962, the property has to be reverted back to his legal heirs. The record would establish the fact that the plaintiff as daughter, Defendant No.1 as widow and remaining to Haji as brother (as Siraj Din had no male issue) are entitled to inherit the legacy of Siraj Din and this very status of the parties as declared by the three Courts has attained finality. The same has not been questioned by the actual parties i.e., the Defendants (Respondents Nos. 2-9). The predecessor of the petitioners, the Defendant No.10, legally stepped into the shoes of the Defendant No.1 (now deceased) as he purchased the property from her vide Ex.P-6 and can ask only for the share of Mst. Bhagan Bibi received by her after promulgation of the Act of 1962 and the rest

would go to the other legal heirs of Siraj Din as noted above. So, the sale made by Mst. Bhagan Bibi, the Defendant No. 1 vide Exh.P-6 will only be effective to the extent of her own share as discussed above and that will be invalid, void and will be ineffective to the extent of rights of plaintiff (Respondent No. 1) and Haji, predecessor of Respondents Nos. 2-9. This would not be out of context to mention here that the plaintiff (Respondent No.1) cannot claim legacy of her mother (in the property left by her father) as she sold away her share in her lifetime to the predecessor of the petitioners, the Defendant No.10. As far as the transfer of property by way of an exchange Mutation No.2787 dated 26.04.2004 (Exh.P-8) in favour of Defendant No.11 (Respondent No.10) Muhammad Ashiq (deceased) is concerned that was only to the extent of 15/1647 shares, an area of 3 Kanal and 0 Marla only, so the remaining property if any, in the name of Mst. Bhagan Bibi as widow of Haji (if not further transferred in her lifetime) would be heritable by the plaintiff (Respondent No.1) being her daughter to the extent of her legal/ sharai share along with her other legal heirs, Respondents No.3-9. This can be clarified from the record and is necessary for substantial justice.

6. Since the actual defendants (Respondents Nos. 3-9) have accepted the decrees in favour of plaintiff (Respondent No.1) and the status of Defendant No.10 (predecessor of the petitioners) is simply that of a purchaser who legally cannot challenge/question the legal and sharai status of Respondent No.1 or the other respondents. He, (the petitioners) for that matter, has no locus standi and cause of action to challenge the same. He, (the petitioners) at the most, can ask the Defendants Nos. 2-9 (Respondents Nos. 3-9) as they are the legal heirs of Mst. Bhagan Bibi for redressal of their grievance if any. This petition, his appeal before the District Court and civil revision before the High Court were not maintainable even on this score alone.

7. The concurrent findings of facts recorded by three Courts cannot be questioned in absence of any misreading or non-reading of material evidence or any other material irregularity or illegality. No other legal point, within the locus standi of the petitioners affecting the merits of this case was raised or argued.

8. We have gone through the impugned judgment, which is based on proper appreciation of evidence and require no interference by this Court. Hence, this petition being meritless is dismissed as such and leave refused.

UN/M-73/SC Petition dismissed.

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